

2022 and with a stay pending appeal, Plaintiffs argue that the trial would not take place within five years of filing the complaint. Plaintiffs argue that witness's memories will fade with time. Further, Plaintiffs argue that there will be inefficiency and injustice if a stay pending appeal is ordered in this case.

BNSF and Plaintiff Schaefer's reasons for requesting a stay are based primarily on the assumption that the Court's ruling on Oakley's motion for summary judgment was incorrect. The Court does not view its ruling on the summary judgment motion as a sufficient buttress to the stay request. In addition, BNSF and Schaefer's concerns about how the Court's ruling on Oakley's motion for summary judgment will affect the presentation of evidence at trial are better raised in motions in limine. Further, a delay pending appeal will likely delay this case by another two years. The Court exercises its discretion and denies the request for a stay.

3. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION IN RE: COURT APPOINTED RECEIVER'S MOTION FOR AN ORDER APPROVING RECEIVER'S FINAL REPORT AND ACCOUNT, DISCHARGING RECEIVER, APPROVING FINAL FEES AND COSTS OF RECEIVER AND COUNSEL, APPROVING DISPOSITION OF CMD SALLOON, LLC'S ASSETS, AND TERMINATING RECEIVERSHIP.**

FILED BY:

TENTATIVE RULING:

Appearance required.

4. 9:00 AM CASE NUMBER: C24-01538

CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.

***HEARING ON MOTION FOR DISCOVERY A PROTECTIVE ORDER, TO STAY ALL WRITTEN DISCOVERY, AND FOR THE ISSUANCE OF A CASE MANAGEMENT ORDER. FILED BY SEQUOIA EQUITIES, INC.**

FILED BY:

TENTATIVE RULING:

The hearing is continued to February 2, 2026, at 9 a.m. in Department 34 due to the continuance of the motion to consolidate in Case No. C23-02401 until January 22, 2026, in Department 39.

This lawsuit is assigned to Department 34 for all purposes, effective January 5, 2026.